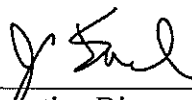


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, May 24, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27601 against Police Officer Anton Baird, Tax Registry No. 956407. The case was conferenced on May 4, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of Command Discipline Schedule (B), forfeiture of TEN (10) vacation days.



Executive Director
New York City Civilian Complaint Review Board



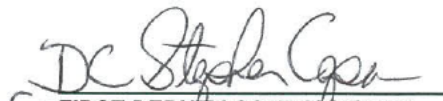
DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27601
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, BAIRD	FIRST ANTON	M.I. K	COMMAND 071 PRECINCT
SHIELD NO. 8458	TAX REGISTRY NO. 956407	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2014	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Anton Baird, on or about October 30, 2021, at approximately 2122, while assigned to 071 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, used offensive language, in that he made offensive remarks to § 87(2)(b) based on her perceived mental state without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Anton Baird, on or about October 30, 2021 at approximately 2122, while assigned to 071 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that they were discourteous to § 87(2)(b) by stating in sum and substance "she's crazy bro" without police necessity.	DISMISSED	


For: **FIRST DEPUTY COMMISSIONER**

8/18/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

10/19/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 11, 2023

Re: CCRB Case No. 202106606 (Incident Date: October 30, 2021) involving Police Officer
Anton Baird, Tax No. 956407 (DADS No. 2022-27601)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegation against Police Officer Anton Baird and determined that the actions of Police Officer Baird do not warrant the imposition of the proposed penalty.

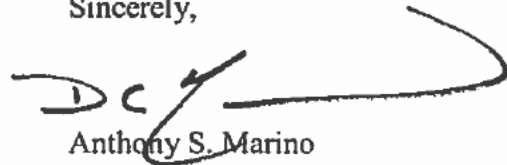
Police Officer Baird had a duty to maintain a courteous, professional, and respectful demeanor throughout the encounter, as the complainant was preparing a domestic incident report. The Police Commissioner agrees with CCRB that charges and specifications are not warranted in this case, and intends to issue a Schedule "A" Command Discipline for being discourteous to the complainant. The Police Commissioner feels discourtesy is the appropriate charge, but not offensive language based on an individual's perceived mental state. While Police Officer Baird's comment was discourteous and inappropriate, the comment was made out of frustration, not based on the complainant's perceived mental state. Additionally, it is important to note that the complainant, when filing a civilian complaint, did not make an allegation in regard to this statement, but rather this allegation was based on CCRB's review of body worn camera footage. Based on the totality of the circumstances, the comment was discourteous and inappropriate but not offensive language based on an individual's perceived mental state.

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Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter, and direct the issuance of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days, solely for discourtesy.

Sincerely,

A handwritten signature in black ink, appearing to read "DC" followed by a stylized flourish.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.
John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

October 18, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Anton Baird
Disciplinary Case No.: 2022-27601

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino dated October 11, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the charges and specifications regarding offensive language for Police Officer Anton Baird. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino states that after reviewing the recommended penalty settlement, the imposition of a disciplinary penalty regarding Specification one (1) for offensive language is not appropriate. CCRB disagrees with this determination for the following reasons:

Police Officer Baird assumed responsibility for his offensive and discourteous language used toward § 87(2)(b). The CCRB's internal investigation confirmed that calling § 87(2)(b) "crazy" was offensive regarding her mental state, which is considered a protected class under New York City’s Human Rights Law. Such offensive language further undermined her experience as a domestic abuse victim and reflects demeaning conduct. This incident is a clear representation of a pattern of behavior that belittles and denigrates, which is unbecoming of a sworn police officer.

While we appreciate the Police Commissioner's recognition of the discourtesy in Officer Baird's remarks, it is vital to underscore the profoundly offensive nature of his actions. These actions took place in a crucial situation that demanded sensitivity and empathy, rendering his

offensive language even more inexcusable. Furthermore, the Disciplinary System Penalty Guidelines indicates the mitigated penalty for this form of misconduct is ten (10) days.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the Police Commissioner accept ADCT Adler's endorsement of the plea, put forth by CCRB, in the herein matter of a Schedule B Command Discipline and forfeiture of ten (10) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jonathan Darche", is written over a horizontal line.

Jonathan Darche

Executive Director

NYC Civilian Complaint Review Board

Cc: Stuart London, Esq.
John Tynan, Esq.